MASTER SERVICES AGREEMENT

Agreement reference: VGI/NCS/MSA/2022-014

THIS AGREEMENT is made on 14 March 2022 (the "**Signature Date**")

BETWEEN:

(1) **VERIDIAN GLOBAL INDUSTRIES PLC**, a company incorporated in England and Wales (company number 08841376) whose registered office is at 45 Canary Quay, London E14 5AB, United Kingdom ("**Veridian**" or the "**Customer**"); and

(2) **NORDHAVEN CLOUD SOLUTIONS A/S**, a company incorporated in Denmark (CVR no. 31 22 87 40) whose registered office is at Havnegade 12, 1058 Copenhagen K, Denmark ("**Nordhaven**" or the "**Supplier**").

BACKGROUND

(A) Veridian operates a global industrial manufacturing business and requires managed cloud, service desk and security monitoring services for itself and its Affiliates.

(B) Nordhaven has agreed to provide such services on the terms of this Agreement, which includes its Schedules and the Data Processing Agreement of even date (the "**DPA**").

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement the following terms have the meanings given:

"Affiliate" means any entity that directly or indirectly controls, is controlled by or is under common control with a party, where "control" means ownership of more than 50% of voting rights;

"Business Day" means a day other than a Saturday, Sunday or public holiday in England;

"Confidential Information" means all information of a confidential nature disclosed by or on behalf of a party, in any form, including the terms of this Agreement;

"Critical Service Failure" has the meaning given in Schedule 2, paragraph 4;

"Effective Date" means 1 April 2022;

"Fees" means the fees payable for the Services as set out in Schedule 1, as varied from time to time in accordance with this Agreement;

"Initial Term" has the meaning given in clause 2.1;

"Monthly Fee" means, in respect of a Service, the monthly Fee for that Service stated in Schedule 1;

"Services" means the Cloud Hosting Service, the Managed Service Desk and the Security Monitoring Service described in Schedule 1; and

"Service Levels" means the service levels set out in Schedule 2.

1.2 References to clauses and Schedules are to those of this Agreement. In the event of conflict, the clauses prevail over the Schedules, and the DPA prevails over both in respect of the processing of personal data.

2. TERM AND RENEWAL

2.1 This Agreement commences on the Effective Date and, unless terminated earlier in accordance with its terms, continues for an initial period of thirty-six (36) months (the "**Initial Term**").

2.2 On expiry of the Initial Term this Agreement shall automatically renew for successive periods of twelve (12) months (each a "**Renewal Term**") unless either party gives the other not less than ninety (90) days' written notice of non-renewal before the end of the Initial Term or the then-current Renewal Term.

3. THE SERVICES

3.1 Nordhaven shall provide the Services to Veridian and its Affiliates from the Effective Date with reasonable skill and care, in accordance with good industry practice and the Service Levels.

3.2 Any change to the Services shall be agreed in accordance with the change control procedure in Schedule 3. No change is binding until recorded in a Change Control Note signed by authorised representatives of both parties.

3.3 Nordhaven shall not subcontract any material part of the Services without Veridian's prior written consent, such consent not to be unreasonably withheld in respect of the sub-processors listed in the DPA.

4. FEES AND PAYMENT

4.1 Veridian shall pay the Fees monthly in arrears. Nordhaven shall invoice on or after the last day of each calendar month.

4.2 Undisputed invoices shall be paid within forty-five (45) days of the date of receipt of a valid invoice. Where Veridian disputes an invoice in good faith it shall pay the undisputed portion and notify Nordhaven of the dispute within that period.

4.3 Interest on late payment accrues at four per cent (4%) per annum above the Bank of England base rate from time to time, from the due date until payment, whether before or after judgment.

4.4 With effect from each anniversary of the Effective Date the Fees may be increased by a percentage not exceeding the lower of (a) the percentage increase in the UK Consumer Price Index over the preceding twelve months and (b) three per cent (3%). Nordhaven must give at least sixty (60) days' written notice of any increase.

5. SERVICE LEVELS AND SERVICE CREDITS

5.1 Nordhaven shall meet or exceed the Service Levels. Where it fails to do so, Veridian is entitled to the service credits calculated under Schedule 2.

5.2 Service credits are a price adjustment and not a penalty. Subject to clause 5.3, service credits are Veridian's sole and exclusive financial remedy for a failure to meet a Service Level.

5.3 Clause 5.2 does not apply, and Veridian may exercise its rights under clause 12.2(b) and recover damages subject to clause 11, where a Critical Service Failure occurs.

6. DATA PROTECTION

6.1 Each party shall comply with applicable data protection laws, including the UK GDPR and Regulation (EU) 2016/679. Nordhaven processes personal data as processor on behalf of Veridian in accordance with the DPA.

6.2 A breach of clause 6 or the DPA is a material breach for the purposes of clause 12.2(a).

7. CONFIDENTIALITY

7.1 Each party shall keep the other's Confidential Information confidential, use it only to perform or receive the Services, and disclose it only to employees, Affiliates and advisers who need to know and are bound by equivalent obligations.

7.2 These obligations do not apply to information that is or becomes public other than through breach, was lawfully known to the recipient, is independently developed, or must be disclosed by law or a regulator.

7.3 This clause 7 survives termination or expiry for a period of five (5) years.

8. INTELLECTUAL PROPERTY

8.1 Each party retains ownership of its pre-existing intellectual property. All deliverables created specifically for Veridian under this Agreement and paid for by Veridian are assigned to Veridian on payment, excluding Nordhaven's tools, methodologies and know-how, which are licensed to Veridian on a non-exclusive, perpetual basis to the extent required to use the deliverables.

9. WARRANTIES

9.1 Nordhaven warrants that (a) it has full authority to enter into this Agreement; (b) the Services will be performed by suitably qualified personnel; and (c) the Services will not infringe the intellectual property rights of any third party.

10. INDEMNITIES

10.1 Nordhaven shall indemnify Veridian against losses arising from any third-party claim that the Services or deliverables infringe intellectual property rights, provided Veridian gives prompt notice, allows Nordhaven to control the defence and provides reasonable assistance.

11. LIMITATION OF LIABILITY

11.1 Nothing in this Agreement limits or excludes liability for (a) death or personal injury caused by negligence; (b) fraud or fraudulent misrepresentation; or (c) any liability that cannot lawfully be limited or excluded.

11.2 Subject to clauses 11.1 and 11.3, each party's total aggregate liability arising under or in connection with this Agreement in any Contract Year, whether in contract, tort (including negligence) or otherwise, shall not exceed one hundred per cent (100%) of the Fees paid or payable in the twelve (12) months immediately preceding the event giving rise to the claim.

11.3 The cap in clause 11.2 does not apply to liability under the indemnity in clause 10.1 or to a party's wilful default or abandonment of the Services.

11.4 Subject to clause 11.1, neither party is liable for loss of profit, loss of goodwill or any indirect or consequential loss.

12. TERMINATION

12.1 After the Initial Term, either party may terminate this Agreement for convenience on not less than one hundred and eighty (180) days' written notice.

12.2 Either party may terminate this Agreement with immediate effect by written notice if the other party:

(a) commits a material breach which is incapable of remedy or, if capable of remedy, is not remedied within thirty (30) days of written notice requiring remedy; or

(b) in the case of Veridian as the terminating party, a Critical Service Failure occurs, in which case no cure period applies and notice must be given within ninety (90) days of Veridian becoming aware of the Critical Service Failure; or

(c) becomes insolvent, enters administration or liquidation, or ceases to carry on business.

12.3 On termination or expiry for any reason, Nordhaven shall provide reasonable exit assistance for up to six (6) months at the rates in Schedule 1, and shall return or securely delete Veridian data in accordance with the DPA.

13. FORCE MAJEURE

13.1 Neither party is liable for delay or failure caused by events beyond its reasonable control (not including failures of subcontractors or power or network failures within Nordhaven's control). If such event continues for more than sixty (60) days, the unaffected party may terminate on written notice.

14. ASSIGNMENT AND CHANGE OF CONTROL

14.1 Neither party may assign or transfer its rights or obligations without the prior written consent of the other. Nordhaven shall notify Veridian within ten (10) Business Days of any change of control of Nordhaven; Veridian may terminate under clause 12.2(a) if the acquirer is a direct competitor of Veridian.

15. NOTICES

15.1 Notices must be in writing and sent by courier or registered post to the registered office of the recipient, marked for the attention of the General Counsel (Veridian) or the Chief Executive Officer (Nordhaven), with a copy by email to legal-notices@veridian-global.example or contracts@nordhaven.example respectively. Email alone is not valid notice.

16. GOVERNING LAW AND DISPUTES

16.1 This Agreement and any non-contractual obligations arising from it are governed by the laws of England and Wales.

16.2 A dispute shall first be referred to senior executives of each party, who shall meet within fifteen (15) Business Days. If unresolved, the parties shall attempt mediation under the CEDR Model Mediation Procedure before commencing proceedings. The courts of England have exclusive jurisdiction, save that either party may seek urgent injunctive relief in any court.

17. GENERAL

17.1 **Entire agreement.** This Agreement and the DPA constitute the entire agreement between the parties and supersede all prior discussions and understandings.

17.2 **Variation.** No variation of this Agreement is effective unless it is in writing, refers expressly to this Agreement and is signed by an authorised representative of each party. For the avoidance of doubt, email exchanges and verbal assurances do not constitute a variation.

17.3 **Waiver.** A failure or delay in exercising a right is not a waiver of it.

17.4 **Counterparts.** This Agreement may be executed in counterparts.

Signed for and on behalf of **VERIDIAN GLOBAL INDUSTRIES PLC** by Helena Marsh, Chief Operating Officer.

Signed for and on behalf of **NORDHAVEN CLOUD SOLUTIONS A/S** by Søren Lindqvist, Chief Executive Officer.

SCHEDULE 1 - SERVICES AND FEES

Part A: Services and Monthly Fees (all amounts in EUR, exclusive of VAT)

Ref	Service	Description	Monthly Fee (EUR)
1.1	Cloud Hosting Service	Managed IaaS/PaaS hosting in EU regions for Veridian ERP, MES and data platforms, including 24x7 infrastructure operations	42,000
1.2	Managed Service Desk	Level 1 and Level 2 end-user and application support, 24x5, 14 languages	18,500
1.3	Security Monitoring Service	24x7 SOC monitoring, SIEM operation, incident triage and quarterly threat reports	11,000
	Total Monthly Fees		**71,500**

Part B: Exit assistance rates. Senior consultant EUR 1,150 per day; consultant EUR 820 per day; project manager EUR 980 per day.

Part C: Annual Fee review. See clause 4.4. All Fees are fixed for the period to 31 March 2023.

SCHEDULE 2 - SERVICE LEVELS AND SERVICE CREDITS

1. **Availability.** Nordhaven shall ensure that the Cloud Hosting Service is available at least 99.9% of the time in each calendar month, excluding scheduled maintenance (maximum 8 hours per month, notified 5 Business Days in advance).

2. **Incident response and resolution.**

Severity	Definition	Response time	Resolution time
Severity 1	Complete outage or data loss affecting production systems	30 minutes	4 hours
Severity 2	Major degradation; workaround not available	2 hours	12 hours
Severity 3	Minor degradation; workaround available	1 Business Day	5 Business Days

3. **Service credits for availability.** Where monthly availability of the Cloud Hosting Service falls below the Service Level, Nordhaven shall credit Veridian a percentage of the Monthly Fee for the Cloud Hosting Service (and not of any other Monthly Fee) for the affected month as follows:

Monthly availability	Service credit (% of Cloud Hosting Monthly Fee)
Below 99.9% but at or above 99.5%	5%
Below 99.5% but at or above 99.0%	10%
Below 99.0%	20%

Service credits shall not exceed twenty-five per cent (25%) of the Cloud Hosting Monthly Fee in any month, and are applied against the next invoice.

4. **Critical Service Failure** means (a) monthly availability of the Cloud Hosting Service below 98.0% in any single calendar month; or (b) monthly availability below 99.5% in each of three (3) consecutive calendar months.

5. **Reporting.** Nordhaven shall deliver a monthly service report within five (5) Business Days of month end showing availability and incident performance.

SCHEDULE 3 - CHANGE CONTROL PROCEDURE

1. Either party may propose a change by written request. Nordhaven shall within ten (10) Business Days provide a Change Impact Assessment covering scope, price, timetable and risks. 2. No change takes effect until a Change Control Note is signed by Veridian's Head of Procurement (or delegate) and Nordhaven's Account Director. 3. Changes to clauses of this Agreement (as opposed to Services) require a formal written amendment under clause 17.2 signed by authorised signatories, and may not be made by Change Control Note.

[Footnote 1 - Pre-signature drafting note retained in file copy: Procurement requested a 24-month Initial Term; Legal advised 36 months to align with the Fee discount in Schedule 1. Final: 36 months.]